

1 IN THE SUPERIOR COURT FOR THE STATE OF ALASKA

2 THIRD JUDICIAL DISTRICT AT ANCHORAGE

3 FAIRBANKS NORTH STAR BOROUGH)
4 SCHOOL DISTRICT and KUSPUK SCHOOL)
5 DISTRICT,)

6 Plaintiffs,)

7 v.)

8 STATE OF ALASKA; ALASKA)
9 DEPARTMENT OF EDUCATION & EARLY)
10 DEVELOPMENT; DEENA BISHOP, in her)
official capacity as Commissioner; and)
11 MICHAEL J. DUNLEAVY, in his official)
12 capacity as Governor,)

13 Defendants.)

14 Case No. _____

15 **COMPLAINT FOR DECLARATORY AND INJUNCTIVE RELIEF**

16 **Preliminary Statement**

17 1. The Education Clause of Alaska's constitution provides that "[t]he
18 legislature shall by general law establish and maintain a system of public schools open
19 to all children of the State[.]" Alaska Constitution, Article VII, § 1.

20 2. The Education Clause vests Alaska's school-aged children with the
21 constitutional rights to a sound basic education and a meaningful opportunity to achieve
22 proficiency in reading, writing, math, and science.
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1 3. The Education Clause imposes a corresponding constitutional obligation
2 on the State to provide Alaska’s school-aged children with a sound basic education and
3 a meaningful opportunity to achieve proficiency in reading, writing, math, and science.
4

5 4. The State’s constitutional obligation to provide a sound basic education
6 has at least four components. First, the State must establish rational educational
7 standards that meet or exceed a constitutional floor and set out what Alaska’s children
8 should be expected to learn in order to meaningfully participate in and contribute to
9 society. Second, the State must implement a method of assessing whether Alaskan
10 students are actually learning what is set out in its standards. Third, the State must
11 provide funding at a level that is adequate to accord schools the ability to provide
12 instruction in the standards. And fourth, the State must maintain adequate
13 accountability and oversight over public schools in the state to ensure that they are
14 fulfilling the State’s constitutional responsibility to “establish and maintain a system of
15 public schools” as mandated by the Education Clause.
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18 5. The State is failing to meet its constitutional obligation to afford Alaska
19 students with a sound basic education and meaningful opportunity for proficiency in
20 the subjects and skills required for participation in and contribution to society.
21

22 6. The State is failing to meet its constitutional obligation to fund schools
23 and school districts at a level that is adequate to provide students with a sound basic
24 education and meaningful opportunity for proficiency in the subjects and skills required
25 for participation in and contribution to society.
26

7. The State's refusal to dedicate constitutionally adequate resources to public education has had predictable results. A 2024 National Assessment of Educational Progress ranked Alaska's fourth graders 49th nationally in reading and math. The same report ranked Alaska's eight graders 49th in reading and 46th in math.

8. This case calls upon the Court to review the status of the State’s compliance with its obligation to “maintain a system of public schools” capable of delivering a constitutionally adequate education to its students, and to determine whether Alaskan school children today are receiving the adequate and equitable education that Alaska’s constitutional delegates envisioned.

PARTIES

9. Plaintiff Fairbanks North Star Borough School District (“FNSBSD”) is the school district for the Fairbanks North Star Borough. It serves nearly 12,000 K-12 students in and around Fairbanks, North Pole, Eielson AFB, Fort Wainwright, and the surrounding communities. FNSBSD brings this case on behalf of itself and its students, who are being denied their constitutional right to an education. FNSBSD is a constitutional claimant within the meaning of AS 09.60.010(c).

10. Plaintiff Kuspuk School District (“Kuspuk”) is an Alaska school district for seven communities located across the central Yukon-Kuskokwim Delta. It operates nine schools and serves approximately 320 K-12 students. The Kuspuk School District brings this case on behalf of itself and its students, who are being denied their

1 constitutional right to an education. Kuspuk is a constitutional claimant within the
2 meaning of AS 09.60.010(c).

3
4 11. Defendant State of Alaska, through its executive and legislative branches,
5 has a constitutional obligation to provide the school-aged citizens of Alaska with a
6 sound basic education.

7
8 12. Defendant Alaska Department of Education and Early Development is
9 the executive branch agency responsible for administering the State's public education
10 system and maintaining oversight of local school districts. DEED has the responsibility
11 to ensure that Alaskan school-aged are receiving a constitutionally adequate public
12 education.

13
14 13. Defendant Michael Dunleavy is the Governor of the State of Alaska and
15 in that capacity has a constitutional obligation to faithfully discharge the laws of the
16 state, including the Education Clause. He is sued in his official capacity.

17
18 14. Defendant Deena Bishop is the Commissioner of the Alaska Department
19 of Education and Early Development. She is sued in her official capacity.

20 JURISDICTION AND VENUE

21 15. This Court has jurisdiction pursuant to AS 22.10.020.

22 16. Venue is proper pursuant to Alaska R. Civ. P. 3(c).

23 FACTS

24 *Overview of Alaska Public Education*

25
26 17. Approximately 130,000 students attend K-12 public schools in Alaska.

1 18. These students attend approximately 500 different schools in 54 school
2 districts spread out across the state.

3 19. There are three primary types of school districts in Alaska. Each of the
4 state's 16 organized boroughs is a school district. Each of the state's 18 home rule and
5 first-class cities located in the unorganized borough is a school district. The remaining
6 19 school districts are Rural Education Attendance Areas ("REAA") in the unorganized
7 borough.
8

9 20. Pursuant to Article VII, § 1 of the Alaska Constitution, the Legislature
10 has the responsibility to "establish and maintain a system of public schools open to all
11 children of the State."
12

13 21. The Legislature has responded to the constitutional directive of
14 Article VII, § 1 by enacting Title 14 of the Alaska Statutes, AS 14.03.010, *et seq.*,
15 entitled *Education, Libraries, and Museums*.
16

17 22. Title 14 provides that "school age[d]" children (generally between the
18 ages of 5 and 19) are "entitled to attend public school." *See* AS 14.03.070 - .080. School
19 attendance is compulsory for "every child between seven and 16 years of age." *See*
20 AS 14.30.010.
21

22 23. Title 14 also created a system for the certification of teachers and school
23 administrators. *See* AS 14.20.010, *et seq.*
24

25 24. In furtherance of its constitutional mandate, the Legislature also
26 established the State Board of Education and Early Development (the State Board) to

1 set education policy for the state, and the State Department of Education and Early
2 Development (“DEED”) to administer the public education system.

3
4 25. The State Board appoints DEED’s commissioner, with approval from the
5 Governor. DEED’s current Commissioner is Dr. Deena Bishop.

6 26. DEED exercises general supervision over Alaska’s public schools,
7 establishes standards and assessments, and administers grants, among other things.

8
9 27. Subject to certain overriding provisions of state law and DEED
10 supervision, the Legislature has delegated the responsibility to operate public schools
11 to locally elected school boards.

12 28. Local school boards have the authority to determine their own fiscal
13 procedures; appoint, compensate, and otherwise control all school employees; adopt
14 regulations governing policies and procedures for the operation of the district’s schools,
15 and employ a chief school administrator. The Legislature also imposed certain duties
16 on local school boards, including the obligation to provide an educational program for
17 each school-aged child who is enrolled in or is a resident of the district, and to develop
18 a philosophy of education, principles, and goals for its schools. *See* AS 14.08.111.
19
20

21 ***Alaska Academic Standards & Assessments***

22 29. The State acknowledges that “students *must* be provided opportunities to
23 gain skills and learn to apply them to real-world life and work situations.” (emphasis
24 added).
25
26

1 30. To this end, DEED has developed and adopted content standards across
2 educational subjects intended to “establish a strong foundation of knowledge and skills
3 all students need for success after graduation.” Content standards “outline the skills and
4 knowledge expected of students from grade to grade and subject to subject.”
5

6 31. DEED has established content standards in the following subject areas:
7 English Language Arts, Mathematics, Science, Social Studies, Cultural Standards, Arts,
8 Computer Science and Digital Literacy, Employability, Library and Information,
9 Physical Education and Health, and World Languages.
10

11 32. DEED has also adopted performance standards it calls “grade level
12 expectations” (GLEs) to set specific benchmarks for student learning. GLEs define
13 what students should know and be able to do at each grade level in core subjects.
14

15 33. The State employs a number of different statewide testing and assessment
16 tools to measure student achievement and determine whether educational benchmarks
17 are being met. These include that Alaska System of Academic Readiness (AK STAR)
18 and Alaska Science Assessments.
19

20 34. Statewide assessment results from the 2024-2025 school year reveal a
21 stark and sobering reality. Alaska’s public education system is failing the vast majority
22 of the state’s school-aged children. As of the 2024-2025 school year, 67.3 % of Alaska
23 students did not meet grade-level expectations in English Language Arts. 67.8 % of
24 students did not meet grade-level expectations for Mathematics. 62.2% of students did
25
26

1 not meet grade-level expectations in Science. In other words, roughly two-thirds of
2 Alaska students cannot meet the educational benchmarks set by the State.

3
4 ***Funding Public Education in Alaska***

5 35. Public education in Alaska is funded through a combination of state,
6 local, and federal money.

7 36. The State provides “foundation” funding to each school district, the
8 amount of which is calculated under a “Foundation Funding Formula.” The Foundation
9 Funding Formula is based on each school district’s “basic need” as determined by
10 calculations prescribed by the Legislature.

11
12 37. A school district’s “basic need” is the product of that district’s Average
13 Daily Membership, adjusted for a number of factors, and a “base student allocation”
14 (“BSA”) prescribed by general law.

15
16 38. The BSA is a per-student amount of funding for school districts that
17 serves as one of the building blocks for the Foundation Funding Formula, subject to
18 certain adjustments for geographic cost differential, school size, and the number of
19 students receiving special education or intensive services.

20
21 39. The BSA in FY2015 was \$5,830 per student. Ten years later in FY2025,
22 the BSA was \$5,960, an increase of \$130 per student, or 2.2%. Over the same ten year
23 time period, the cumulative rate of inflation was approximately 37%.

24
25 40. In May and August 2025, the Legislature overrode Gubernatorial vetoes
26 to increase the BSA to \$6,600 per student, a 13.2% increase over 2015 levels. Despite

1 the Legislature’s herculean efforts, the 2025 BSA increase was woefully insufficient to
2 keep pace with inflation, which had eroded purchasing power by 37% in the preceding
3 decade.
4

5 41. Local boroughs and cities outside of the REAAs are required to make a
6 minimum contribution to their local school districts (the “Required Local
7 Contribution”). The Required Local Contribution is the equivalent of a 2.65 mill tax
8 levy on the full and true value of the taxable real and personal property in the district,
9 not to exceed 45% of the district’s “basic need” for the preceding fiscal year.
10

11 42. REAAs are not required to make a local financial contribution to their
12 school districts because of the tax-exempt status of much of the land in these
13 communities. Instead, REAAs are eligible for Federal Impact Aid under Title VII.
14 Federal Impact Aid provides funding to districts for children and parents living or
15 working on federal property “in-lieu of local tax revenues.” Twenty-five percent of
16 federal impact aid goes directly to the REAA and is not considered in the state funding
17 allocation to the REAA. Of the remaining 75%, the state deducts 90% of that amount
18 from the amount the REAA would otherwise receive under the Foundation Funding
19 Formula.
20
21

22 43. A school district’s state aid entitlement is equal to its Basic Need, less
23 the Required Local Contribution (or if none, 90% of Federal Impact Aid).
24

25 44. School districts may also be eligible to receive additional amounts
26 through state and federal grant programs, and through increased local contribution.

1 However, schools located in Rural Education Attendance Areas cannot take advantage
2 of increased local contributions because the communities where they are located lack
3 taxing authority.
4

5 *School Finance Adequacy Studies*

6 45. Over the past few decades, School Finance Adequacy Studies have
7 emerged as a rigorous data-driven scientific methodology that allows states and school
8 districts to identify the resources needed to provide every student with robust
9 opportunities to meet college and career readiness standards.
10

11 46. School Finance Adequacy Studies examine the actual cost of delivering
12 education—teachers, support staff, facilities, transportation, special education, and
13 resources for disadvantaged students—and compare that cost to current funding levels
14 in order to identify gaps and shortfalls.
15

16 47. School Finance Adequacy Studies include evidence-based models, cost-
17 function analysis using large data sets, and sophisticated statistical techniques that
18 account for regional cost differences and student-need weights. They are based on
19 empirical research and grounded in measurable educational outcomes.
20

21 48. States and school districts that have performed School Finance Adequacy
22 Studies, and deployed resources and strategies based on those studies, produce
23 significantly improved student achievement.
24

25 49. The State of Alaska has never conducted or commissioned a School
26 Finance Adequacy Study like the one described above. If it did so, and if it provided

1 school funding at a level consistent with the study’s findings, then student achievement
2 in Alaska would rise dramatically.

3
4 50. The State of Alaska uses the term “basic need” in its Foundation Funding
5 Formula, but that term has no logical connection to the actual financial needs of a
6 constitutionally compliant public education system.

7
8 51. The State’s failure to meaningfully and scientifically evaluate whether
9 current funding levels are adequate to provide Alaska’s school-aged children a sound
10 basic education and a meaningful opportunity to achieve proficiency in reading,
11 writing, math, and science is a dereliction of its constitutional obligation to establish
12 and maintain Alaska’s public education system.

13
14 ***Impact on Plaintiffs***

15 52. The State’s failure to adequately study and fund its public education
16 system has had long-ranging negative statewide impacts on educator and administrator
17 retention, facilities, and, ultimately, on student achievement and proficiency.

18
19 53. Recent statewide assessments bear this out. AK STAR results for the
20 2024-2025 school year reflect that 67.31% of Alaska students are not proficient in
21 English Language Arts and that 67.82% are not proficient in Mathematics. Alaska
22 Science Assessments for the same period reflect that 62.13% of students are not
23 proficient in foundational science education.

24
25 54. By the State’s own measures, Alaska’s public education system is failing
26 the majority of its students.

1 55. Plaintiffs have felt the full impact of the State’s chronic refusal to invest
2 in public education.

3
4 ***Fairbanks North Star Borough School District***

5 56. The State does not provide FNSBSD enough funding to recruit, hire, and
6 retain a sufficient number of qualified teachers and staff to maintain appropriate class
7 sizes and provide its students with a constitutionally adequate education.

8
9 57. Since 2019, budget constraints have forced FNSBSD to terminate more
10 than 300 educators, administrators, and support and operational staff. These staffing
11 cuts have directly and negatively impacted student opportunities to become proficient
12 in core subjects like reading, writing, math, and science.

13
14 58. State funding is similarly insufficient for FNSBSD to maintain adequate
15 and accessible school buildings for all of its students. FNSBSD has closed seven
16 schools in the last five years because it could not afford to keep them open. Across its
17 remaining schools, FNSBSD is facing more than \$400 million in deferred maintenance
18 costs that directly and negatively impact its students. Aging elevator and boiler systems,
19 among other things, are a perennial challenge that directly impact student access to
20 educational facilities and, ultimately, to learning. FNSBSD cannot afford to maintain
21 its facilities and also provide constitutionally compliant educational opportunities.

22
23 59. As a result of forced cuts to both staffing and facilities, FNSBSD’s
24 student-to-educator ratio for many classes is the highest it has ever been. Many high
25
26

1 school classes in the district currently have more than 40 enrolled students, well above
2 historical and acceptable student-to-educator ratios.

3
4 60. The State's failure to fund education at a level sufficient for FNSBSD to
5 maintain adequate staffing and facilities has had a direct and predictable impact on
6 student outcomes.

7
8 61. AK STAR assessments for the Fairbanks North Star Borough School
9 District 2024-2025 school year reflect that 63.03% of its students are not proficient in
10 English Language Arts, and that 66.51% are not proficient in Mathematics. FNSBSD
11 Science Assessments for the 2024-2025 school year reflect that 56.48% of its students
12 are not proficient in foundational science subjects.

13
14 62. The State's failure to adequately fund public education disproportionately
15 impacts FNSBSD's minority and economically disadvantaged students. AK STAR
16 assessments for the 2024-2025 school year reflect that 83.73% of FNSBSD's Alaska
17 Native and Native American students, and that 76.80% of FNSBSD's economically
18 disadvantaged students, are not proficient in English Language Arts. The same
19 assessment reflects that 87.82% of FNSBSD's Alaska Native and Native American
20 students, and 79.36% of FNSBSD's economically disadvantaged students, are not
21 proficient in Mathematics.
22

23
24 ***Kuspuk School District***

25 63. The State does not provide Kuspuk enough funding to recruit, hire, and
26 retain a sufficient number of qualified teachers and staff to address the unique needs of

1 its rural student base and to provide its students with a meaningful opportunity to
2 achieve proficiency in core subjects like reading, writing, math, and science.

3
4 64. Although teacher recruitment, turnover, and retention has developed into
5 a statewide crisis driven by inadequate funding, the problem is particularly acute for
6 rural school districts like Kuspuk. In recent years, Kuspuk's ability to recruit and retain
7 certified staff has been hobbled by inadequate funding and the inability to pay teachers
8 what it costs to actually live and work in rural Alaska. Kuspuk has been forced to cut
9 its fine arts, career technical education, and vocational education programs. It went
10 years without a social studies curriculum. It can no longer provide afterschool programs
11 or tutoring. It has had to continually reduce its special education programs to the extent
12 that it is now risking noncompliance with state and federal "maintenance of effort"
13 obligations.
14
15

16 65. Kuspuk has also been crippled by the State's failure to fund critical
17 facilities maintenance and repairs. As a result, many of its students do not have a safe
18 and orderly environment in which to learn, much less access to suitable books, supplies,
19 libraries, educational technology and laboratories.
20

21 66. The Jack Egnaty Sr. School in Sleetmute is a stark example of the extent
22 to which the State forces students to shoulder the burden of its decision to not fund
23 public education in Alaska.
24

25 67. Every year for two decades, the Kuspuk School District requested State
26 funds to repair a leaking roof at the Sleetmute school. Time and time again, the State

1 refused. Predictably, water intrusion rotted out support beams, and windowpanes
2 cracked under the pressure of snow and ice buildup. Eventually, an entire wall of the
3 school buckled, leaving a gaping hole in the exterior siding.
4

5 68. In 2021, an architect concluded that the Sleetmute school “should be
6 condemned as it is unsafe for occupancy.”

7 69. In 2022, maintenance workers discovered a pool of water under the
8 building, where years of rain and snowmelt reduced a number of concrete footings to
9 rubble. As a result, the school’s gymnasium, wood shop, and boys’ bathroom had to be
10 closed.
11

12 70. DEED representatives have repeatedly declined invitations to visit the
13 Sleetmute school and to take stock of the real world impact of the State’s refusal to
14 provide adequate funding for education.
15

16 71. The problems confronting Sleetmute students are emblematic of Alaska’s
17 education funding crisis. But they are not an exhaustive list of impacts caused by
18 inadequate funding. For example, throughout the Kuspuk School District, students
19 attend schools without fire suppression sprinklers. Despite sprinklers being required by
20 State law, Kuspuk cannot afford to install them, and the State will not provide the
21 funding to do so.
22

23 72. The State’s failure to fund education at a level sufficient for Kuspuk to
24 maintain adequate staffing and facilities has had a direct and predictable impact on
25 student outcomes.
26

1 73. Assessments for the Kuspuk School District are dire. AK STAR results
2 for the 2024-2025 school year reflect 97.44% of Kuspuk's students are not proficient
3 in English Language Arts, and that 96.15% are not proficient in Mathematics. Science
4 Assessments for the same period reflect similarly stark results. 93.85% of Kuspuk's
5 students are not proficient in core science subjects.
6

7 74. The State has failed to meaningfully increase education funding while at
8 the same time enacting reforms that require significant resources to successfully
9 implement. For example, Governor Dunleavy signed the Alaska Reads Act into law in
10 June 2022. The Alaska Reads Act is a statewide early literacy reform designed to
11 improve reading proficiency for all K-3 Alaska students by ensuring they can read at
12 grade level by the end of third grade. The law requires universal early screening for
13 reading difficulties and evidence-based instruction consistent with the science of
14 reading. The law also includes professional development and credentialing
15 requirements for K-3 educators and annual district reading improvement plans, among
16 other things. But the State has not evaluated the cost of implementing the Alaska Reads
17 Act, much less provided the funding necessary for its successful implementation.
18
19
20

21 75. The State has failed and refused to fund public education at a level that
22 allows the Fairbanks North Star Borough School District and Kuspuk School District
23 to provide instruction in core subjects, much less provide instruction in those subjects
24 to State-adopted standards.
25
26

1 76. Plaintiffs cannot afford to provide their students with a constitutionally
2 adequate public education.

3
4 **COUNT I – VIOLATION OF THE EDUCATION CLAUSE**

5 77. Plaintiffs incorporate and reallege their prior allegations.

6 78. Pursuant to Article VII, § 1 of the Alaska Constitution, Defendants have
7 a constitutional obligation to “establish and maintain a system of public schools open
8 to all children of the State.”

9
10 79. The forgoing constitutional obligations require that Defendants provide
11 Alaska’s school-aged children with a sound basic education and a meaningful
12 opportunity to achieve proficiency in reading, writing, math, and science.

13
14 80. To satisfy their constitutional obligations, Defendants must, at a
15 minimum, (i) establish rational educational standards that meet or exceed a
16 constitutional floor and set out what Alaska’s children should be expected to learn in
17 order to meaningfully participate and contribute to society; (ii) implement a method of
18 assessing whether Alaskan students are actually learning what is set out in its standards;
19 (iii) provide funding at a level that is adequate to accord schools the ability to provide
20 instruction in the standards; and (iv) maintain adequate accountability and oversight
21 over public schools in this state to ensure that they are fulfilling the State’s
22 constitutional responsibility to “establish and maintain a system of public schools.”

23
24 81. As evidenced by, among other things, recent assessment results and
25 deteriorating facilities, Defendants are and have been failing to provide Alaska’s
26

1 school-aged students with a sound basic education or a meaningful opportunity to
2 achieve proficiency in reading, writing, math, and science.

3
4 82. Defendants cannot reasonably provide funding at a level that is adequate
5 to accord schools the ability to provide constitutional instruction unless they first
6 evaluate what level of funding is necessary to satisfy that obligation.

7
8 83. Defendants' failure to meaningfully and systematically evaluate whether
9 public education funding is adequate to meet the constitutional floor is a further
10 dereliction of their duties under Article VII, § 1.

11
12 84. Defendants have failed to fund public education at a level adequate to
13 afford schools the ability to provide instruction consistent with constitutionally
14 minimum requirements.

15
16 85. Plaintiffs are entitled to a declaratory judgment that Defendants are in
17 violation of the Education Clause of the Alaska Constitution, and a mandatory
18 injunction that Defendants remedy said violations.

19 **COUNT II – VIOLATION OF SUBSTANTIVE DUE PROCESS**

20 86. Plaintiffs incorporate and reallege their prior allegations.

21
22 87. Plaintiffs and their students have a right to substantive due process under
23 Article I, § 7 of the Alaska Constitution.

24
25 88. In violation of Plaintiffs' substantive due process rights, the State has
26 arbitrarily and capriciously funded public education at levels that are woefully

1 inadequate and have no reasonable or logical connection to the actual cost of providing
2 a constitutionally compliant education.

3
4 89. Plaintiffs are entitled to a declaratory judgment that Defendants have
5 denied them substantive due process, and a mandatory injunction that Defendants
6 remedy said violations.

7
8 **PRAYER FOR RELIEF**

9 WHEREFORE, Plaintiffs pray for relief as follows:

10 1. For a Declaratory Judgment that Defendants are in violation of the
11 Education Clause of the Alaska Constitution by failing to fund education at a level
12 sufficient to provide each Alaska student with a sound basic education and a meaningful
13 opportunity to achieve proficiency in core subjects;

14
15 2. For a Declaratory Judgment that Defendants have violated Plaintiffs' and
16 their students' constitutional right to substantive due process by failing to fund
17 education at a level sufficient to provide each Alaska student with a sound basic
18 education and a meaningful opportunity to achieve proficiency in core subjects;

19
20 3. For a mandatory injunction directing Defendants to remedy all of the
21 foregoing constitutional violations;

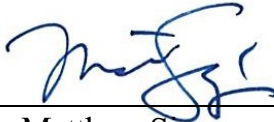
22 4. For a mandatory injunction directing Defendants to commission and
23 conduct a court-supervised School Finance Adequacy Study;

24
25 5. For an award of Plaintiffs' full reasonable attorneys' fees and costs as
26 constitutional claimants under AS 09.60.010(c); and

1 6. For such other and further relief as the Court deems just and equitable
2 under the circumstances.

3
4 DATED at Anchorage, Alaska, this 20th day of January, 2026.

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6 Attorneys for Plaintiffs

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